

After review of the papers, the Court **grants** the Application. The Court will sign the proposed order provided.

5. 9:00 AM CASE NUMBER: C23-02709
CASE NAME: MELISSA PALMER VS. DIGGER'S DINER CONCORD, INC.
*HEARING ON MOTION IN RE: QUASH SUMMONS
FILED BY: DIGGER'S DINER CONCORD, INC.
TENTATIVE RULING:

Before the Court is Specially appearing Defendant Digger's Diner Concord, Inc.'s Motion to Quash Service of Summons.

For the following reasons, Defendant's Motion to Quash is **denied**.

Initial Considerations

"Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages." (Cal. R. Ct. 3.1113(d).) Plaintiff's opposition memorandum is 18 pages, excluding the caption page, table of contents, table of authorities, and proof of service. If a party believes it needs additional pages they need file a request with the court which "must state reasons why the argument cannot be made within the stated limit." (*Id.* at (e).) A memorandum that exceeds the page limit may be rejected by the Court. (Cal. R. Ct. 3.1113 (g); 3.1300 (d); *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765.)

In addition, Plaintiff's counsel filed a declaration in support of the Opposition which attaches five exhibits (A-E). "[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) The declaration fails to include any bookmarks, much less ones with the required information.

Plaintiff's counsel is reminded to comply with the Rules of Court going forward.

Tables of Contents and Authorities

Defendant's counsel points out several 'defects' in the tables provided by Plaintiff – arguing that the Court should strike the Opposition for these typos which appear to misstate the page on which certain arguments and cases appear. Each appears to be one-page off from the actual location. Highlighting these minor defects and seeking to have the Opposition stricken thereupon is absurd. The Court will not strike the Opposition based on the tables included therein.

Timeliness of Opposition

Defendant argues that Plaintiff's opposition was not timely filed and served. It notes that under Code of Civil Procedure section 1010.6, "electronic service of documents adds two days to the deadline for a responsive action." Defendant then argues: "Since the Plaintiff's Opposition was served by electronic service the other party should have served the Opposition at least 11 court days before the hearing to ensure that the person receives the papers on-time. (9 court days, plus 2 days for electronic service)" (Reply 3:16-18.) Apparently, Defendant is relying on Code of Civil Procedure

section 1005 to establish the nine-court day deadline to file the opposition – even though that section is not cited.

Per the terms of section 1005, which governs the timing of filing and serving motion papers: “All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days... before the hearing.” (Code Civ. Proc. 1005(b).) That section goes on to explicitly state that “all papers opposing a motion ... shall be served by personal delivery, ... or other means consistent with Sections ... 1013, and reasonably calculated to ensure delivery to the other party or parties not later than the close of the next business day after the time the opposing papers ... are filed.” (Code Civ. Proc. § 1005(c).) Section 1013 allows for electronic service. Electronic service is ‘reasonably calculated to ensure delivery’ almost instantaneously – and most definitely ‘not later than the close of the next business day’ after the opposition papers were filed.

Defendant’s motion was filed on June 30, 2026, with an original hearing date of December 3, 2026. On July 15, 2026, the Court issued a minute order following a CMC which advanced the hearing to August 20, 2026. Thus, any opposition was due on or before August 7. Plaintiff filed the declaration of diligence on August 4 and the rest of the opposition papers on August 7. As such, Plaintiff’s opposition papers were timely filed.

Even if the papers are considered late, “a trial court has broad discretion to accept or reject late-filed papers.” (*Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262.) The Court would exercise such discretion in this instance.

Factual and Procedural Background

The procedural background of this case and attempts at service are more complicated than any case needs to be. The Court will not belabor the history of hearings in this matter and move directly to matters pertinent to the instant motion.

On June 3, 2026, Plaintiff filed an Amended Proof of Service of Summons (“PoS”) indicating that Defendant Digger’s Diner Concord, Inc. (“Digger’s”) was served via substitute service on May 21, 2026. The PoS indicates that the papers were delivered to “Nikki Doe” (refused to give last name), identified as a manager of the establishment – i.e. Digger’s. A Proof of Mailing was also attached indicating that the papers were mailed to Digger’s, c/o Nicole Mikkelson, Agent for Service on May 21, 2026.

Thereafter, on June 30, Digger’s filed the instant motion to quash.

Legal Standard

California Code Civ. Proc., § 418.10 provides in relevant part that “A defendant . . . may serve and file a notice of motion . . . [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10(a).) Regardless of whether there are other grounds for personal jurisdiction, due process requires that an adjudication be preceded by proper notice. (*Mullane v. Central Hanover Bank & Trust Co.* (1950) 339 U.S. 306, 313.) “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential...” (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 370.)

When a defendant brings a motion to quash service of summons due to defective service, the burden shifts to the plaintiff to prove facts that give the court jurisdiction. (*Coulston v. Cooper* (1966) 245 Cal.App.2d 866, 868.) Code Civ. Proc., § 418.10(d) further states that “no motion under this section, or under Section 473 or 473.5 when joined with a motion under this section . . . shall be deemed a general appearance by the defendant.” (Code Civ. Proc., § 418.10(d).)

Statutory Requirements of Service

“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction.” (*Renoir v. Redstar Corp.* (2004) 123 Cal.App.4th 1145, 1152 quoting *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) “‘Process’ is ‘a writ or summons issued in the course of judicial proceedings.’” (*Ibid.* citations omitted.) “Unless otherwise provided by statute, notice of a claim against a defendant in a civil action is given by service of a summons on the person.” (*Ibid.*) A court “in which an action is pending has jurisdiction over a party from the time summons is served on him....” (Cal. Code Civ. Proc. § 410.50 (a).) “Thus, in the ordinary civil action, unless there be other statutory authority, the issuance and service of summons is a prerequisite to acquisition of jurisdiction.” (*Pousson v. Superior Court of San Diego County* (1958) 165 Cal.App.2d 750, 752.)

The Civil Code prescribes four manners of service: (1) personal service, (2) ‘substitute service’ – wherein the papers are left with someone else coupled with mailing, (3) service by mail coupled with an acknowledgement of receipt, and (4) service by publication. (See Cal. Civ. Code § 415.10 et seq.) The issue briefed by the parties relates to substitute service.

Analysis

Defendant argues that Plaintiff has the burden to demonstrate the validity of service, citing *Bolkiah v. Superior Court* (1999) 74 Cal.App.4th 984, 991. There, the court noted that “once a defendant files a motion to quash the burden is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant.” (*Ibid.*)

Plaintiff’s PoS indicates that the documents were served by a registered California process server. (Gill Decl. Ex. D.) It indicates that the documents were left with Nikki Doe, Manager of Diggy’s at 1895 Farm Bureau Road, Unit B, in Concord, California. (*Ibid.*) The process server’s declaration of diligence explains that when he entered the business he asked for Nicole Mikkelson (who is the agent for service of process). (Gill Decl. Ex. E.) She asked if he was a process server and when he said he was she stated: “I’m the manager and I’m authorized to accept it.” (*Ibid.*) While she refused to indicate if she was named “Nicole Mikkelson,” she did confirm her name was Nikki – a shortened version of Nicole. She did accept the documents. The notice of mailing attached to the PoS indicates that the documents were mailed that same date.

Evidence Code section 647 provides “that service by a registered process server raises a presumption that service was proper.” (*City of Riverside v. Horspool* (2014) 223 Cal.App.4th 670, 680.) Once the proof of service of a registered process server is filed, the statutory presumption applies and “defendant [is] thus required to produce evidence that [s]he was not served.” (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.

On Reply, Defendant submits the declaration of Nicole Starnes which contradicts much of what was

included in the declaration of diligence. She indicates that she is an employee of Digger's and was working on the day the documents were dropped off. However, she notes that the process server did not identify himself and did not tell her what the documents he had were. She also states that she did not tell him she was the manager and was authorized to accept service. She does acknowledge that he handed her the paperwork.

Defendant argues that substitute service was improper because there is no declaration of diligence showing that Plaintiff attempted personal service on Digger's prior to performing substitute service. This argument fails as the diligence requirement only applies to efforts to serve an individual defendant – not a corporate defendant. (Compare Code Civ. Proc. § 415.20(a) and (b).) As the Judicial Council Comment indicates, if the defendant is a corporate entity:

“...service may be made *in the first instance*, in lieu of delivery of process to a specified officer or employee of such entity personally, by leaving the papers in his office. ...” (emphasis added.)

Conversely, the Comment notes that if the defendant is a natural person, service may be made by substitute service “when such papers cannot be personally delivered with reasonable diligence. Personal delivery must be attempted in all cases where this alternative method of service is used.”

Defendant also argues that the service is defective because the process server that served the papers was different from the one that mailed the papers. Defendant cites no law to support this argument. It has been long recognized that “[c]ontentions supported neither by argument nor by citation of authority are deemed to be without foundation, and to have been abandoned.” (*In re Estate of Randall* (1924) 194 Cal. 725, 728-29.) Section 415.20, related to substitute service, does not indicate that the same person that serves the papers must also be the one that mails them.

As for the actual substitute service, a “summons and complaint may be served by leaving a copy of the summons and complaint during usual office hours in the person’s office or ... with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, a postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.” (Code Civ. Proc. § 415.20(a).)

Here, the PoS and Declaration of Diligence indicate that the summons and complaint (and related papers) were left with “Nicki” at Digger’s business address – 1895 Farm Bureau Road, Unit B, in Concord, California. Ms. Starnes’ declaration appears to confirm this in that she indicates that the “gentleman handed me the paperwork.” (Starmer Decl. ¶ 18.) While she states that the ‘gentleman’ did not tell her what the papers were, Defendant fails to cite any authority which indicates that such information is required when serving papers via substitute service at the person’s office.

While Ms. Starnes says she did not tell the process server she as the manager and/or was authorized to accept service, and that she was not authorized to accept service on behalf of Digger’s, the Code does not require that the papers be left with someone “authorized to accept service” for substitute service on a corporation. Instead, as noted above, they only need be left with the “person who is apparently in charge thereof....”

“The evidence purpose of Code of Civil Procedure section 415.20 is to permit service to be completed

upon a good faith attempt at physical service on a responsible person, plus actual notification of the action by mailing the summons and complaint to the appropriate party.” (*Khourie v Sabek* (1990) 220 Cal.App.3d 1009, 1013.) In *Khourie*, the court found substantial compliance with respect to leaving the papers with a ‘responsible person’ when they were left by a locked door after someone inside refused to open the door. (*Id.* at 1013-14.)

The *Khourie* court discussed the case of *Luda v. Memory Magnetics International* (1972) 25 Cal.App.3d 316 wherein the process server entered the defendant’s office and, unable to obtain access to a corporate officer, threw the papers on a coffee table saying, ‘You’re served,’ and later mailing the papers to the defendant. The defendant filed declarations from two people arguing that service was improper. (*Ludka*, 25 Cal.App.3d at 320.)

First, a person that was standing in the reception area when the ‘service’ occurred stated that he told the process server that service was not proper and threw the papers in the waste basket. He was not associated with any defendant. Second, there was a declaration from the president of the defendant – indicating that the person upon whom service was claimed to have been made (the secretary in the office where these events occurred) was employed by a different company located in a different suite (on the same floor). (*Id.* at 320.)

A declaration in opposition indicated that the office where the papers were left was the only accessible area and was a common reception area for the different businesses on that floor. The Court of Appeals “held that the service of process ‘amply complied’ with section 415.20...” (*Khourie*, supra, 220 Cal.App.3d at 1014; *Ludka* 25 Cal.App.3d at 321.)

In both above cases, the courts confirmed that along with leaving the papers, they were also mailed to the proper defendant. Here, the proof of mailing indicates that the summons and complaint were mailed to Digger’s Diner Concord, Inc., a California Corporation c/o Nicole Mikkelson, Agent for Service. Defendant does not dispute this occurred. There is no declaration indicating that the documents were not received. Instead, the focus of the argument is limited to whether leaving the documents at the office/business address with an employee who ‘appeared to be in charge’ – even if she didn’t specifically identify herself as the manager – was sufficient.

“Statutes governing substitute service shall be ‘liberally construed to effectuate service and uphold jurisdiction if actual notice has been received by the defendant...’” (*Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1201.) “[A]ll that is required is *substantial compliance* in order to render the service of summons upon a corporation effective.” (*Cory v. Crocker National Bank* (1981) 123 Cal.App.3d 665, 669.)

Here, the evidence shows that the documents were left with a person that ‘appeared to be in charge’ at the Defendants place of business. Thereafter, the summons and complaint were mailed to Ms. Mikkelson – who is identified as the Agent for Service. A fact which is not disputed by Defendant.

In addition, the “law presumes that items mailed are received...” (*Him v. City and County of San Francisco* (2005) 133 Cal.App.4th 437, 445 citing Evid. Code § 641.) “If, normally, an item properly mailed is received, then evidence of nonreceipt is logically probative of nonmailing...” (*Ibid.*) Defendant does not present any evidence or dispute that Ms. Mikkelson received the documents. As

such, the presumption of receipt applies.

The Court also notes that defense counsel signed a Notice of Acknowledgement of Receipt regarding the First Amended Complaint on January 5, 2024. That Notice of Acknowledgment was filed on January 11, 2024. Service of summons via a Notice of Acknowledgement of Receipt is “deemed complete on the date a written acknowledgment of receipt of summons is executed, if such acknowledgment thereafter is returned to the sender.” (Code Civ. Proc. § 415.30(c).) Defendant was properly served at that time and had actual knowledge of the summons and complaint. It is unclear why Defendant never responded to the FAC, nor why Plaintiff did not move to enter default.

In addition, Plaintiff’s counsel’s declaration indicates Defendant has also responded to written discovery. (Gill Decl. ¶ 5.) If a party makes a general appearance the court obtains jurisdiction over them. A “general appearance need not be ‘a formal, technical step or act...’ [citation]; rather the term may apply to various acts which, under the circumstances, are deemed to confer jurisdiction of the person.” (*Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1397.) “What is determinative is whether defendant takes a part in the particular action which in some manner recognizes the authority of the court to proceed.” (*Ibid.*)

Courts have noted that responding to discovery “is evidently predicate on the assumption that the court has jurisdiction over the answer party -- otherwise, there would be no need for the answers.” (*Chitwood v. County of Los Angeles* (1971) 14 Cal.App.3d 522, 527-28.) “[T]he only hypothesis upon which answers to [discovery] are prepared, filed and served is that the answering party is subject to the court’s jurisdiction.” (*Id.* at 528.) As such, responding to discovery – as Defendant has done here – has been deemed to be a general appearance imparting jurisdiction over that party. (*Ibid.*) “A general appearance by a party is equivalent to personal service of summons on such party.” (*Hamilton v. Asbestos Corp* (2000) 22 Cal.4th 1127, 1147.)

Summary and Conclusion

Defendant has already accepted service of a complaint in this matter when it accepted service of the FAC via the Notice of Acknowledgment. It has also made a general appearance by responding to discovery. In addition, Plaintiff has substantially complied with the service requirements for substitute service on Defendant. Accordingly, Defendant’s motion to quash is **denied**.

Defendant’s multiple efforts to complain of ineffective service—even after Notice of Acknowledgment, general appearance, and multiple different efforts by Plaintiff to serve—have resulted in the significant expenditure of judicial resources. Defendant’s unmeritorious arguments noted above have also wasted judicial resources. All of this follows prior judicial admonishment to behave more professionally, which Plaintiff has acknowledged and vows to take seriously. The Court expects counsel to engage in good faith in this litigation and will be prepared to take appropriate action if that does not occur.

6. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO JAMES TAFELSKI FOR DEF
FILED BY: HCR MANOR CARE SERVICES, LLC